

Court No. - 29

Case :- WRIT - C No. - 26281 of 2019

Petitioner :- Banwari Lal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ram Murat

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Ram Murat, learned counsel for the petitioner. Sri Baleshwar Chaturvedi, learned counsel has accepted notice on behalf of respondent no.2.

The petitioner is aggrieved by the recovery citation dated 20.05.2019 whereunder a sum of Rs.3,99,975/- is being recovered from him as arrears of electricity dues.

Submission of learned counsel for the petitioner is that he is not defaulted in payment of electricity bills and that his meter was sealed long back and he had not used any electricity.

In other words, according to the contention of the petitioner, he is not disputing the demand of electricity dues which can be taken care of by the Executive Engineer in exercise of power under Clause 6.5 of U.P. Electricity Supply Code, 2005 and in case the petitioner wants to pay said amount in installments, he may approach the Executive Engineer under Clause 6.14 of the Code.

In view of the aforesaid facts and circumstances, the writ petition is ***disposed off*** with liberty to the petitioner to take recourse to either of the above remedies or any other remedy that may be advised in law.

Order Date :- 26.8.2019

S.Sharma